investigators questioned a number of Congress leaders, including then MLA and now minister Kawasi Lakhma who was in the convoy but escaped. "The NIA charge-sheet filed in September 2014 mentions only low-level operatives being involved, while documents in the course of the investigation earlier mention top Maoist operatives such as then CPI (Maoist) general secretary Ganapathy and Ramanna (now deceased). Finally, 39 people have been made accused, of which nine are in jail. The biggest accused in the case is a central committee member, Devji Tirupathi," says Sudeep Shrivastava, lawyer for the Chhattisgarh state. "It does not seem plausible that low-level Maoist operatives can pull off such an operation," he adds. Those in favour of a probe into a possible conspiracy say many questions remain unanswered. "Was the route changed at the last moment? If yes, at whose behest? Was security downgraded for some victims? Was there a delay in sending reinforcements? These are some of the questions that need answers," says Shrivastava.

BJP LEADERS ARE CONCERNED THAT THE STATE GOVERNMENT MAY INFLUENCE THE POLICE PROBE

Interestingly, one of the prime accused in the NIA FIR, Sannu Potam alias Kiran, surrendered in Dantewada in 2015 and reiterated that the attack was not pre-planned. The secretary of the Kanger Valley Committee or the operational head of the area at the time, he is now a member of the state police.

Why is the BJP opposed to a probe into the incident by the police? They may be unwilling to come on record, but a common concern among BJP leaders is that the state government may influence the investigation. Besides BJP leaders, the late CM Ajit Jogi was also part of the whisper campaign in various conspiracy theories. The BJP government in Chhattisgarh had agreed to a CBI probe in 2016 and communicated it to the Centre. But the Ministry of Home Affairs (MHA) rejected it, something that came to light only two years later.

In 2019, the Congress-led state government sought the files related to the case from the MHA, but their request was declined. Next year, a fresh FIR was filed in Jagdalpur on the complaint of Jitendra Mudaliyar, the son of the deceased Congress leader, urging the police to investigate the conspiracy angle. The NIA opposed it, and BJP leader and former leader of the Opposition Dharamlal Kaushik also got a high court stay on the functioning of the fresh judicial commission appointed by the Congress government. The earlier judicial panel set up by the BJP government had submitted its report to the governor instead of the government then led by the Congress. It was an SC bench led by Chief Justice of India D.Y. Chandrachud and Justices J.B. Pardiwala and Manoj Mishra that ruled on November 21 that they would not like to intervene in the probe by the state police. "We are not inclined to entertain the SLP under Article 136 of the Constitution," states the order.

Chhattisgarh has just finished another assembly poll. The outcome on December 3 will determine which way the probe of the Jheeram Ghati massacre will head next. ■



By Amarnath K. Menon

Bihar has shown the way. Announced the intention, and acted on it. On November 15, Andhra Pradesh launched a pilot of its caste census, ostensibly to assess the numbers of castes and sub-castes in the state and tailor welfare measures accordingly, but also to drum up support for the Yuvajana Sramika Rythu Congress Party (YSRCP) ahead of the 2024 general election. Chief Minister Y.S. Jagan Mohan Reddy declared that the census will "empower the backward castes and ensure social justice in the state". The actual survey will start on December 9 and the results out by January-end.

The elaborate grama/ ward secretariat system that YSRCP has established in AP for grassroots administration should make the conduct of the census a swift affair. The pilot project is under way in five secretariats—Srikakulam, Dr Ambedkar Konaseema, NTR, Nellore and YSR districts. The questions have been drafted and the facilities ready for surveyors to collect facial, iris and other details for the e-KYC registration. "The findings will enhance our data-driven governance and help in targeted